

19STCV42782 19STCV42782

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C07%2F30%2F2026

Source SHA-256: 48c1a4890ecdba49de22548e7402d67c979f42e2ff89ab59f86afba22cf973ba

Case Number: 19STCV42782 Hearing Date: July 30, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

QING ZHAO,

Plaintiff,

vs.

CHEN WANG, et al.,

Defendants.

AND RELATED CROSS-ACTION

Case No.:

19STCV42782 [c/w 21STCV09104]

Hearing Date:

July 30, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

REVIEW OF DEFAULT JUDGMENT PACKAGE

AND RELATED CROSS-ACTION

Background

Cross-Complainant Pai Sung Lin ("Lin") requests default judgment against Cross-Defendants Chen Wang and Zoe Chow aka Zoe Chow Szwan ("Chow") (jointly "Defendants"), in the total amount of \$539,297.96, comprising \$230,000.00 demanded in the complaint, \$201,758.96 in interest, and \$107,539.00 in attorney fees.

Lin explains that "[o]n February 29 and 29, 2024, trial was held on Plaintiff's claims against Lin. The Court found that Plaintiff's signature on Lin's promissory note and Deed of Trust were forged and that Plaintiff had timely filed her lawsuit seeking to set aside Lin's loan. Lin's Deed of Trust was found invalid and unenforceable as against Plaintiff's residence." (Memo., 2:11-14; see Statement of Decision p. 2, ¶ 7 ["Wang and Defendant Zoe Chow a.k.a. Zoe Chow Sizeman ('Chow') forged Zhao's name on the Note Secured by Deed of Trust."].) Additionally, the Court stated, "[t]he parties have stipulated that Zhao's signature on the Deed of Trust was forged. (Stipulated Facts Nos. 7 and 11.) Therefore, the document is void. ... Consequently, the Court finds that Lin's Deed of Trust is not valid or enforceable against the Property." (Statement of Decision, 7:4-12.) The Court ordered Lin to "file default judgment packages as to the defaulted defendants and cross-defendants." (Statement of Decision, 12:26-27.)[1]

Lin asserts that, "[i]n the present matter, Lin presents evidence that Wang and Chow knowingly entered into an agreement to forge Plaintiff's signature on the Note Secured by Deed of Trust and Deed of Trust so that Wang could obtain a loan in the amount of \$230,000.00 from Lin without Plaintiff's knowledge or consent. Lin further presents evidence that he funded the loan in reliance on the executed Note Secured by Deed of Trust and Deed of Trust. Lin additionally presents evidence that he would not have funded the loan for \$230,000.00 has [sic] he known that the documents were forged.

Finally, Lin presents evidence that he is owed \$431,758.96 on the loan and is owed \$107,539.00 in attorney's fees and costs because he was required to defend the validity and enforceability of the Note Secured by Deed of Trust and Deed of Trust." (Memo., 3:24-4:5.)

Request for Judicial Notice

The Court grants Lin's request for judicial notice of Exhibits 7 and 8.

Discussion

Previously, the Court denied the request for default judgment, in part, due to an insufficient declaration of non-military status. Lin's counsel filed a declaration attesting to counsel's inability to ascertain Chow's military status. Lin's counsel explains, inter alia, that "to determine Chow's military status under the SCRA my office needs to possess [sic] either her Social Security Number or her date of birth. We have neither for several reasons." (Beall Decl., ¶ 4.) "First, Lin has never met Chow and has no personal knowledge of her Social Security Number or a date of birth." (Beall Decl., ¶ 5.) "Second, Chow failed to file an appearance in this litigation and, as such, Lin was unable to conduct discovery upon her seeking her Social Security Number or a date of birth." (Beall Decl., ¶ 6.) "Third, my office has researched all of the documents obtained through discovery from Plaintiff in this case (escrow documents and loan documents) and was unable to locate any information for Chow including her Social Security Number or a date of birth." (Beall Decl., ¶ 7.) "Fourth, my office has conducted research with First Amended Datea Tree (a real property database), Westlaw People Map (a public records database) and conducted index searches of the Los Angeles County Superior Court records and PACER records and was unable to locate any information for Chow including her Social Security Number or a date of birth." (Beall Decl., ¶ 8.) "Fifth, my office has conducted internet research of LinkedIn and Google and was unable to locate any information for Chow including her Social Security Number or a date of birth." (Beall Decl., ¶ 9.) The Court finds that Lin's counsel's declaration testifies to her diligence in attempting to confirm Chow's nonmilitary status. Accordingly, this defect is cured.

Conclusion

Based

on the foregoing, the
Court finds that Lin sufficiently supported the request with the submitted
evidence and declarations. Accordingly, the Court grants Lin's request and
will sign the judgment.

No appearance is
necessary at the hearing on this matter.

DATED: July 30, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court

[1] On
June 30, 2026, the Court of Appeal reversed the judgment in part. The reversal
does not address the Cross-Complaint by Lin against the Cross-Defendants.